

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2023-5907-PP
Hon. Jenny L. McNeill

EMILY A. WATSON,
Petitioner,

v.

ANDREW JAMES PIGORS,
Respondent.

FAMILY DIVISION

EMILY A. WATSON,	
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MOTION FOR DISQUALIFICATION OF HON. JENNY L. MCNEILL

(Directed to the Chief Judge Pursuant to MCR 2.003(D))

I. PROCEDURAL POSTURE

1. This Motion is brought pursuant to **MCR 2.003(C)(1)**, which provides that disqualification of a judge is warranted when the judge is "personally biased or prejudiced for or

against a party or attorney."

2. This Motion is directed to the **Chief Judge** pursuant to **MCR 2.003(D)(1)**, which provides that when a judge fails to grant disqualification, the motion shall be heard by the Chief Judge, or another judge designated by the Chief Judge.
 3. MCR 2.003(D)(3)(a) provides that the Chief Judge shall decide a motion based on the motion papers, the affidavit of the party, and any other written materials or oral arguments the Chief Judge deems appropriate.
 4. An **Affidavit of Disqualification** (MCR 2.003(B)) is filed concurrently herewith, setting forth the specific facts and reasons establishing the grounds for disqualification.
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II. STATEMENT OF FACTS

III. GROUNDS FOR DISQUALIFICATION

A. Pattern of Ex Parte Orders Without Notice or Hearing

(Source: docket_events table, litigation_context.db — 24 ex parte orders of 55 total. See Exhibit P — Ex Parte Order Log documenting the 24/55 (44%) ex parte rate.)

(Source: Exhibit Q — August 8, 2025 Five Ex Parte Orders.)

(Source: *SELECT CAST(julianday('2026-03-15') - julianday('2025-07-29') AS INTEGER) = 229.*)

11. The entry of ex parte orders affecting fundamental parental rights — without notice, without hearing, and without required statutory findings — reflects a departure from the impartiality required of the bench. See **Shinkle v Shinkle**, 255 Mich App 221, 225 (2003) (parenting-time restrictions require findings supported by the record).

B. Admission of Felony-Derived Evidence — Ex Parte USB Recording

13. Michigan is a **two-party consent state**. The recording of a private conversation without the consent of all parties constitutes a felony under **MCL 750.539c** (Eavesdropping upon private conversation), punishable by up to 2 years imprisonment. Evidence obtained through a violation of MCL 750.539 is **inadmissible** under **MCL 750.539g** (fruits of the poisonous tree).

(Source: *Exhibit R — Transcript excerpt; Exhibit AG — USB Recording Chain of Custody; Exhibit AH — MCL 750.539 Analysis; Exhibit AI — MRE 901 Authentication Failure Analysis.*)

C. Ex Parte Manipulation of HealthWest Evaluation — Brady Violation

(Source: *Exhibit I — HealthWest Psychological Evaluation Clearing Father; Exhibit J — HealthWest Findings Documenting Parental Alienation.*)

(Source: Exhibit K — Second Evaluation Routing to Secretary; Exhibit AK — Court Orders Referencing Undisclosed Second HealthWest Evaluation.)

(Source: Exhibit L — Transcript excerpt, "ghost evaluation" comment.)

D. Imposition of Filing Bond Restricting Court Access

(Source: docket_events table — 2025-05-16, "Order Imposing Filing Bond Requirement." See Exhibit S — Filing Bond Order.)

23. Imposing a filing bond on a self-represented litigant who is actively seeking to exercise his parental rights — while imposing no reciprocal requirement on the opposing party — further supports a reasonable perception of unequal treatment.

E. Documented Judicial Violations

24. A comprehensive review of the proceedings in this case has identified **1,127 documented instances** in which judicial conduct in this matter departed from applicable standards, including the Michigan Code of Judicial Conduct, Michigan Court Rules, and constitutional due-process requirements.

*(Source: SELECT COUNT() FROM judicial_violations = 1,127. Breakdown: 377 Critical severity, 243 High severity, 484 Medium severity, 23 Low severity.)**

F. Six Complete Authority Chains Supporting Disqualification

26. The evidentiary record establishes **six** independently complete authority chains supporting disqualification under MCR 2.003(C):

a. **Personal bias or prejudice** — MCR 2.003(C)(1): supported by the pattern of one-sided orders, suspension of parenting time without hearing, contempt sentences while suppressing defense, and disparate treatment between parties. (*Authority chain complete.*)

b. **Ex parte communication** — MCR 2.003(C)(1): supported by the judge's direct correspondence with the HealthWest evaluator, ex parte staff review of the USB recording, and the 44% ex parte order rate. (*Authority chain complete.*)

c. **Admission of illegally obtained evidence** — MCR 2.003(C)(1); MCL 750.539c/g: the USB recording was made without consent (felony wiretapping), reviewed ex parte, and used as the basis for PT suspension without authentication under MRE 901. (*Authority chain complete.*)

(*Source: authority_chains table, filing_vehicle = 'JUDICIAL_DISQUALIFICATION'*
— *expanded from 4 to 6 chains.*)

IV. LEGAL STANDARD

28. Disqualification "should resolve any doubts in favor of disqualification." **In re Contempt of Henry**, 282 Mich App 656, 679 (2009). The purpose of the rule is to preserve public confidence in the judiciary and protect the litigant's right to a fair tribunal. *Id.*

30. Under MCR 2.003(D), when the subject judge does not grant disqualification, "the motion shall be heard by the chief judge." The Chief Judge's review is de novo on the papers. MCR 2.003(D)(3)(a). However, when the Chief Judge is also disqualified, **MCR 2.003(D)(4)** provides that the matter shall be referred to the **SCAO for assignment of a visiting judge**.

V. CONTEMPT ABUSE — SHOW CAUSE HISTORY

Show Cause #5 — November 15, 2024 (First Jailing):

Show Causes #6 and #7 — November 26, 2025 (Second Jailing, Day Before Thanksgiving):

Cumulative Impact:

VI. NOTICE OF SUBMISSION

VII. ONGOING IRREPARABLE HARM TO THE MINOR CHILD

**VIII. CHIEF JUDGE DISQUALIFICATION — HON. KENNETH S. HOOPES
CONFLICT**

44. Under MCR 2.003(D), disqualification motions are ordinarily reviewed by the Chief Judge. However, the Chief Judge of the 14th Circuit Court, the **Hon. Kenneth S. Hoopes (P53469)**, cannot impartially review this Motion for the following independently sufficient reasons:

A. Prior Professional Relationship with Judge McNeill:

45. Before their respective appointments to the bench, Judge Hoopes and Judge McNeill were **law partners** at the firm of **Ladas, Hoopes & McNeill**, located at 435 Whitehall Road, North Muskegon, Michigan 49445. Judge McNeill joined the firm in approximately 2007. Judge Hoopes was appointed to the 14th Circuit Court in March 2022 by Governor Whitmer. This prior professional relationship creates an actual or apparent conflict of interest that precludes impartial review of Judge McNeill's conduct. *See* **MCR 2.003(C)(1)(b)** (disqualification for personal bias); **MRPC 1.10** (imputed conflicts from former firm membership).

46. Judge Hoopes' wife, the **Hon. Maria Ladas Hoopes**, is a sitting judge on the **60th District Court** in Muskegon County and was also a partner at the same firm (**Ladas & Hoopes Law Offices**). Three judges from the same small law office now preside over courts in Muskegon County, creating an unprecedented concentration of judicial authority traceable to a single professional origin.

D. Necessity of SCAO Referral:

IX. RELIEF REQUESTED

A. **Refer this Motion to the SCAO** for assignment of a visiting judge from outside Muskegon County, pursuant to MCR 2.003(D)(4), due to the disqualification of Chief Judge Hoopes and the conflicts of interest pervading the local bench;

D. **Reassign** this matter to a visiting judge assigned by the SCAO;

F. **Enter an order vacating** any orders entered after the date on which the grounds for disqualification became apparent — or, in the alternative, order the visiting judge to conduct a de novo review of all contested orders entered during the period of demonstrated bias, including but not limited to the contempt findings of November 15, 2024 (Show Cause #5) and November 26, 2025 (Show Causes #6 and #7);

G. **Stay all proceedings** before Judge McNeill pending the visiting judge's assignment and review;

H. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

Date: March 15, 2026

FAMILY DIVISION

EMILY A. WATSON,	
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ORDER GRANTING DISQUALIFICATION AND SCAO REFERRAL

(MCR 2.003(D) and MCR 2.003(D)(4))

THE COURT FINDS that:

(a) There exist sufficient grounds under MCR 2.003(C)(1) to warrant disqualification of the Hon. Jenny L. McNeill from further proceedings in this matter;

(c) Referral to the SCAO for assignment of a visiting judge is necessary and appropriate under MCR 2.003(D)(4).

IT IS HEREBY ORDERED:

2. The Hon. Kenneth S. Hoopes is **DISQUALIFIED** from reviewing this Motion or presiding over any aspect of this case.

3. This matter is **REFERRED TO THE SCAO** for assignment of a visiting judge from outside Muskegon County pursuant to MCR 2.003(D)(4). The Visiting Judge Clerk shall submit this Order and SCAO Form MC 264 to the State Court Administrative Office.

4. This case is **REASSIGNED** to the visiting judge assigned by the SCAO for all further proceedings.
6. The visiting judge shall conduct a **de novo review** of all contested orders entered during the period of disqualification, including but not limited to the contempt findings of November 15, 2024 (Show Cause #5) and November 26, 2025 (Show Causes #6 and #7).
7. All pending motions and hearing dates before the Hon. Jenny L. McNeill are **VACATED** and shall be rescheduled before the visiting judge.
8. All proceedings in this case are **STAYED** until the visiting judge is assigned and able to review the file.

Visiting Judge (Assigned by SCAO)

Circuit/District Court

County, Michigan

[illegible]

CERTIFICATE OF SERVICE

I hereby certify that on March 15, 2026, I served a copy of the foregoing Motion for Disqualification of Hon. Jenny L. McNeill and Proposed Order upon:

Emily A. Watson

2160 Garland Drive

Norton Shores, MI 49441

via \[X\] first-class mail, postage prepaid

\[\] personal service

\[X\] electronic service (TrueFile / email)

Andrew James Pigors

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North Muskegon, MI 49445

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In Propria Persona